

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-12

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC.,

v.

MSC MEDITERRANEAN SHIPPING COMPANY SA

JOINT MOTION TO EXTEND DEADLINES

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. ("Complainant" or "BBBY"), and Respondent MSC Mediterranean Shipping Company SA ("Respondent" or "MSC" and, collectively with BBBY, the "Parties"), by their respective undersigned counsel, hereby jointly submit this Joint Motion to Extend Deadlines ("Motion") respectfully requesting a 90-day extension of the remaining deadlines set forth in the Presiding Officer's September 24, 2024 Second Amended Scheduling Order.

I. THE CURRENT SCHEDULE

1. On September 24, 2024, the Presiding Officer entered a Second Amended Scheduling Order with the following deadlines relevant to this Motion:

December 16, 2024	Joint status report due describing status of discovery
January 17, 2025	Complete depositions of fact witnesses
January 17, 2025	Last day to serve interrogatories, requests for admission, and RFPs
February 6, 2025	Disclosure of initial expert reports, if any

March 10, 2025	Disclosure of rebuttal expert reports, if any
March 13, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
April 8, 2025	Complete expert depositions
April 8, 2025	Close of discovery
May 1, 2025	Complainant's initial brief, proposed findings of fact, and appendix
May 29, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
June 12, 2025	Complainant's reply brief and responses to proposed findings of fact

II. GOOD CAUSE EXISTS TO EXTEND THE CURRENT DEADLINES

2. The Parties have continued to be proactive and collaborative regarding discovery in this matter and have conferred extensively to address technical issues and to resolve all pending discovery disputes. The Parties remain respectful of the deadlines set forth in the Second Amended Scheduling Order and have mutually satisfied the November 14, 2024 deadline for substantial completion of production of documents and ESI pursuant to initial RFPs. The number of documents produced by the Parties is considerable, requiring significant time for review in preparation for depositions. Complainant has made eight rolling productions comprised of 469,548 documents and 3,155,189 pages. Respondent has made four rolling productions comprised of 59,436 documents and 355,552 pages. Respondent is in the process of preparing a small, final fifth production and anticipates timely production by mid-December.

3. The Parties have been diligently working to review the substantial amount of produced documents and to identify deponents. The Parties have conferred regarding depositions and are each preparing to begin noticing depositions as soon as feasible. Given the scale of the document productions and the significant amount of time required for review, it is clear to the

Parties that they will not be in a position to adequately prepare for and take all fact depositions based upon a full review of the documentary record by the current January 17, 2025 deadline, and consequently would both be prejudiced in their ability to present their claims and defenses fully in their respective briefs or in any eventual hearing in this action.

4. The Parties anticipate collectively taking approximately 20-30 party and non-party depositions. While the Parties are working together to proceed as quickly as possible and limit depositions to the extent possible, and are committed to promptly locating and contacting deponents, the winter holidays will severely limit the availability of deponents in the coming weeks, compounded by the fact that many potential deponents for the parties are either former employees or reside abroad. Within this context, the Parties are hopeful that they will be able to begin depositions around the current January 17, 2025 deadline for completion of depositions.

5. Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." As contemplated, the Parties have produced more than 175 times the 20,000 pages previously cited by the Parties in *One Banana North America Corp. v Hapag-Lloyd AG et al.*, FMC Dkt. No. 22-03, in which the Presiding Officer granted an approximate 75-day extension from the originally ordered production and deposition deadlines. (*See id.* Docs. 17–18.) Further, our federal courts have recognized that an extension is appropriate when the volume of documents produced, comparable to what has been exchanged in this case, requires significant time for the opposing parties to analyze same in preparation for depositions. *In Re Domestic Airline Travel Antitrust Litigation* 2018 WL 4441507 (D.D.C. Sept. 13, 2018) (production of 3.5 million documents warranted discovery extension).

6. The Parties reiterate their commitment to preventing further requests for additional time and will work to limit such extension requests, including by working to facilitate consent for email service of subpoenas and provision of contact information, where available, and by conducting depositions by teleconference services rather than in person. There are no current discovery disputes outstanding between the Parties, and the Parties are continuing to confer with one another on an ongoing basis, working collaboratively to move discovery forward as quickly as feasible while facilitating ongoing settlement discussions between principals for both parties.

III. THE RELIEF SOUGHT IS APPROPRIATE TO THE CIRCUMSTANCES

7. As the parties continue to work diligently and collaboratively to review a collective 3,510,741 produced pages and to prepare for approximately 20-30 fact depositions, the Parties respectfully submit that an extension of the remaining deadlines in the September 24, 2024 Second Amended Scheduling Order is necessary and reasonable to allow the Parties a fair opportunity to fully review documents, prepare for and take depositions of each other's relevant fact witnesses, and assess the need for additional discovery, including non-party discovery. The Parties will continue to endeavor to avoid asking the Presiding Officer for additional extensions of time and, to the extent motions are needed, will seek to raise them as soon as the need appears and, where possible, file them jointly.

8. The Parties therefore jointly request the following amended schedule (moved approximately 90 days from the original deadlines in the Second Amended Scheduling Order, accounting for weekends and holidays):

March 17, 2025	Joint status report due describing status of discovery
April 17, 2025	Complete depositions of fact witnesses
April 17, 2025	Last day to serve interrogatories, requests for admission, and RFPs

May 7, 2025	Disclosure of initial expert reports, if any
June 9, 2025	Disclosure of rebuttal expert reports, if any
June 11, 2025	Joint status report identifying expert witnesses and summarizing the purpose of their testimony
July 7, 2025	Complete expert depositions
July 7, 2025	Close of discovery
July 30, 2025	Complainant's initial brief, proposed findings of fact, and appendix
August 27, 2025	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
September 10, 2025	Complainant's reply brief and responses to proposed findings of fact

9. Pursuant to 46 C.F.R. Section 502.71(a), counsel for Complainant and counsel for Respondent have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The Parties each agree to the relief requested in this joint Motion.

10. WHEREFORE, the Parties jointly pray that their Joint Motion to Extend Deadlines be granted.

Dated: December 9, 2024

Respectfully submitted,

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